

23SMCV01072 23SMCV01072

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 23SMCV01072 Hearing Date: July 21, 2026 Dept: O

TENTATIVE RULING

July 21, 2026

23SMCV01072 (Yaghoubzadeh v.
Moradi, et. al.)

RELEVANT BACKGROUND

On March 9, 2023, plaintiff Crystal Yaghoubzade (Plaintiff) filed the initial Complaint. The first amended complaint (FAC) was filed on May 18, 2023, against David R. Moradi (Moradi), Meir Agaki D.D.S. Inc. (Agaki) and does 1-50, alleging dental malpractice, violation of Health and Safety Code sections 123100, et seq., negligent hiring and supervision, fraudulent misrepresentation, negligent misrepresentation, fraudulent concealment, intentional infliction of emotional distress, and declaratory relief.

On September 5, 2024, Moradi's Motions to Compel were granted, and Plaintiff was ordered to provide responses by September 15, 2024. (9/5/24 Minute Order) In addition, Plaintiff was ordered to pay the monetary sanctions in the amount of \$1,140 due October 21, 2024. (Id.)

On March 18, 2025, Moradi's motion for terminating sanctions was granted in part, as follows: "the Court again orders the Plaintiff to file verified code compliant responses to SROGS and RFPs within 10 days of the hearing and to pay additional sanctions in the amount of \$1,485.00." (3/18/25 Minute Order.)

On November 20, 2025, the Court granted Agaki's motion for summary judgment. (11/20/25 Minute Order.) Moradi's motion for summary judgment was granted in part as to the 1st, 2nd, and 4th-8th causes of action and denied as to the third cause of action. (Id.)

On March 18, 2025, Moradi's Motion for Terminating Sanctions and Monetary Sanctions was heard and granted in part as follows:

1. Defendant

DAVID R. MORADI, D.D.S.'s Motion for an Order of terminating sanctions against Plaintiff CRYSTAL YAGHOUBZADEH and Request for Monetary Sanctions is hereby GRANTED in part.

2. Plaintiff

CRYSTAL YAGHOUBZADEH is ORDERED again to serve verified, code compliant responses to Defendant DAVID R. MORADI, D.D.S.'s Special Interrogatories, Set Two, and Defendant DAVID R. MORADI, D.D.S.'s Request for Documents, Set Two, within 10 days of the hearing on March 18, 2025.

3. Plaintiff

CRYSTAL YAGHOUBZADEH and Plaintiff's counsel, Armand J. Jaafari, Esq., jointly and severely is further ORDERED to pay Defendant DAVID R. MORADI, D.D.S. monetary sanctions in the amount of \$1,485.00 by way of check to Ford, Walker, Haggerty & Behar [predecessor firm to Behar Gibbs Savage and Paulson] within 10 days of the signed order of the Court.

4. The Court

further ordered Plaintiff CRYSTAL YAGHOUBZADEH to be available for deposition on April 8, 2025, April 9, 2025, April 14, 2025, or April 17, 2025 as agreed by the parties at the hearing on March 18, 2025

(3/18/26 Minute Order.)

INSTANT MOTION

On April 23, 2026, Moradi filed the instant motion for judgment on the pleadings or alternatively a motion to strike.

No opposition has been filed.

MEET AND CONFER

The Court finds that Moradi has satisfied the meet and confer requirement. (Bridwell Decl. ¶ 13.)

REQUEST FOR JUDICIAL NOTICE

Moradi's requests for judicial notice of court filings in the instant action are granted.

DISCUSSION

I.

MOTION FOR JUDGMENT ON THE PLEADINGS / MOTION TO STRIKE

A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired and, except as provided by Code of Civil Procedure section 438, the rules governing demurrers apply. (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999; Southern Calif. Edison Co. v. City of Victorville (2013) 217 Cal.App.4th 218, 227; Templo v. State of Calif. (2018) 24 Cal.App.5th 730, 735; Code Civ. Proc. § 438.)

"The court may, upon a motion made pursuant to Section 435, or at any time at its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or any order of the court." (Code Civ. Proc., § 436.)

A. Negligent Hiring and Supervision

The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist

because of the employment; and (4) harm occurs. (Evan F. v. Hughson United Methodist Church (1992) 8 Cal.App.4th 828, 836-837.)

Here,

the instant motion is made pursuant to Code of Civil Procedure section 438 on the ground that the Plaintiff's entire First Amended Complaint fails to sufficiently state a cause of action against Moradi for Negligent Hiring and Supervision based on this court's Order dated March 27, 2026 on Moradi's request for issue and evidence sanctions, and made pursuant to Code of Civil Procedure section 436. Morardi argues that the only remaining cause of action, Negligent Hiring and Supervision, is not legally cognizable, improper, and contrary to this Court's Order. The Court agrees.

The Court's March 27, 2026 Order precludes Plaintiff "from introducing at trial evidence in support of its cause of action against Defendant Moradi for negligent hiring and supervision of employees" thus Plaintiff cannot sufficiently present a legally cognizable claim for Negligent Hiring and Supervision against the Defendant.

Accordingly, Moradi's unopposed motion is GRANTED.